

TENTATIVE RULING:

Parties and counsel to **appear in person** for settlement conference.

3. 9:00 AM CASE NUMBER: C23-02179

CASE NAME: DMITRIY SHORNIKOV VS. LAKE ALHAMBRA PROPERTY OWNERS ASSOCIATION

HEARING ON SUMMARY MOTION JUDGMENT

FILED BY: SHORNIKOV, DMITRIY

TENTATIVE RULING:

Before the Court is Plaintiff Dmitriy Shornikov's motion for summary judgment or in the alternative summary adjudication. The motion relates to Plaintiff's verified complaint for violations of Civil Code §§ 5103(b)(1), 5103(b)(2), 5103(e), 5105(a), and 5115(c). The motion also seeks adjudication of Defendant Lake Alhambra Property Owners' Association's eighth affirmative defense under Civil Code § 5145(a).

By his motion, Plaintiff seeks to void the 2023 Board of Directors election. Plaintiff also seeks statutory damages and attorneys' fees and costs.

As a threshold issue, Defendant argues that Plaintiff's motion is procedurally defective in several respects: omission of a statement of facts in the memorandum of points and authorities, in violation of California Rule of Court 3.1113(b); facts in the memorandum that are not captured in the separate statement as required by Code of Civil Procedure § 437c(b)(1); and failure of the separate statement to comply with California Rule of Court 3.1350 in several respects.

First, the Court notes that: "[a]ll material facts must be set forth in the separate statement. 'This is the Golden Rule of Summary Adjudication: if it is not set forth in the separate statement, *it does not exist*. Both the court and the opposing party are entitled to have all the facts upon which the moving party bases its motion plainly set forth *in the separate statement*.'" (*United Community Church v. Garcin* (1991) 231 Cal.App.3d 327, 337, italics in original, superseded by statute on other grounds, as stated in *Certain Underwriters at Lloyd's of London v. Superior Court* (1997) 56 Cal.App.4th 952, 957, fn. 4.) The Court also notes that it has the discretionary power to deny summary judgment on the basis of failure to comply with California Rule of Court 3.1350. (*Truong v. Glasser* (2009) 181 Cal.App.4th 102, 118.)

Notwithstanding the above defects, the Court reaches the merits of Plaintiff's motion. Counsel for Plaintiff is cautioned that future motion practice must comply with the California Rules of Court and Civil Procedure.

For the following reasons, the motion is **denied**.

Request for Judicial Notice

The Association requests Judicial notice of Assembly Bill 502 and the Verified Complaint in the matter *Shornikov v. Lake Alhambra Property Owners Association*, Contra Costa County Superior Court, Case No. MSL19-08297. Plaintiff objects to the request.

An assembly bill constitutes cognizable legislative history of which the Court may take judicial notice.

(*People ex rel. Schlesinger v. Sachs* (2023) 97 Cal. App. 5th 800, 813 [citing *Kaufman & Broad Communities, Inc. v. Performance Plastering, Inc.* (2005) 133 Cal.App.4th 26, 31-34, and Evid. Code §§ 451(a), 452(c)].)

The Court may also take judicial notice of the existence of the Verified Complaint in L19-08297, but not the truth of the allegations asserted therein. (*Day v. Sharp* (1975) 50 Cal.App.3d 904, 914, 918; Evid. Code §§ 452(a), 452(d), 453.) Subject to that limitation, the request is **granted**.

Legal Standard

Code of Civil Procedure § 437c(c) provides, in relevant part:

The motion for summary judgment shall be granted if all the papers submitted show that there is no triable issue as to any material fact and that the moving party is entitled to a judgment as a matter of law.

Section 437c(p)(1) provides:

A plaintiff or cross-complainant has met his or her burden of showing that there is no defense to a cause of action if that party has proved each element of the cause of action entitling the party to judgment on the cause of action. Once the plaintiff or cross-complainant has met that burden, the burden shifts to the defendant or cross-defendant to show that a triable issue of one or more material facts exists as to the cause of action or a defense thereto. The defendant or cross-defendant shall not rely upon the allegations or denials of its pleadings to show that a triable issue of material fact exists but, instead, shall set forth the specific facts showing that a triable issue of material fact exists as to the cause of action or a defense thereto.

The party moving for summary judgment has the burden of persuasion to show there is no triable issue of material fact and thus it is entitled to judgment as a matter of law. (*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 850.) Only if the moving party successfully meets this burden does the burden shift to the opposing party to make its own prima facie showing of the existence of a triable issue of material fact. (*Ibid.*; see also *Chern v. Bank of America* (1976) 15 Cal.3d 866, 873.) The scope of the initial burden is defined by the pleadings. (See *580 Folsom Assocs. v. Prometheus Dev. Co.* (1990) 223 Cal. App. 3d 1, 18.)

Analysis

This case arises out of the Association's 2023 Board of Directors election, wherein all candidates were declared elected to the Board by acclamation. Plaintiff alleges that with respect to that election, the Association violated Civil Code §§ 5103(b)(1), 5103(b)(2), 5103(e), 5105(a), and 5115(c). Defendant argues that notwithstanding any technical failure to comply with the statutory requirements of those sections, the election results would have been the same, precluding the Plaintiff from voiding the results of that election.

A homeowner's association has been described as a quasi-government entity that must be held to a high standard of responsibility. (*Cohen v. Kite Hill Community Assn.* (1983) 142 Cal.App.3d 642, 651.) "The business and governmental aspects of the association and the association's relationship to its members clearly give rise to a special sense of responsibility upon the officers and directors . . . This special responsibility is manifested in the requirements of fiduciary duties and the requirements of

due process, equal protection, and fair dealing.’ [Citation.].” (*Ibid.*) To that end, an association must comply with the applicable standards set forth in the Davis-Stirling Act and must operate in accordance with its own governing documents. To the extent of any conflict between an association’s governing documents and the Act, the Act “shall prevail” (§ 4205, subd. (a)), and to the extent of any conflict between an association’s CC&Rs and bylaws, the CC&Rs “shall prevail” (§ 4205, subd. (c)).

Here, Plaintiff has met his initial burden to show violations of Civil Code §§ 5103(b)(1), 5103(b)(2), 5103(e), 5105(a), and 5115(c). It is not materially disputed that the Association failed to comply with the 90-day notice requirement of § 5115(a) (UMF 1.1), that the Association does not have a record of sending a written reminder under § 5103(b)(2) (UMF 2.1), that the Association does not have a record of an agenda reflecting the candidates’ names as required by § 5103(e) (UMF 3.1), and that it did not distribute ballots under § 5115 (c) (though the Association argues that the traditional balloting process was not warranted for the 2023 election) (UMF 5.1).

The Association disputes that it violated Civil Code § 5105(a). (DMF 4.1)

Plaintiff meets his initial burden on violations of the Davis-Stirling Act for §§ 5103(b)(1), 5103(b)(2), 5103(e), and 5115(c). Assuming *arguendo* that the Association also violated Civil Code § 5105(a), the dispositive issue on this motion is whether there is a genuine dispute of material fact with respect to whether any procedural noncompliance with the Act affected the results of the 2023 election.

Civil Code § 5145(a) provides:

A member of an association may bring a civil action for declaratory or equitable relief for a violation of this article by the association, including, but not limited to, injunctive relief, restitution, or a combination thereof, within one year of the date that the inspector or inspectors of elections notifies the board and membership of the election results or the cause of action accrues, whichever is later. If a member establishes, by a preponderance of the evidence, that the election procedures of this article, or the adoption of and adherence to rules provided by Article 5 (commencing with Section 4340) of Chapter 3, were not followed, a court shall void any results of the election unless the association establishes, by a preponderance of the evidence, that the association’s noncompliance with this article or the election operating rules did not affect the results of the election. The findings of the court shall be stated in writing as part of the record.

While Plaintiff argues in his moving papers that the number of candidates in elections has been greater than the number of open seats, the Association has adduced evidence that in seven out of ten election cycles, the number of nominations did not exceed the number of available seats. (See e.g. Schandelmier Declaration at ¶ 4(a)-(m).) Defendant has also adduced evidence that on occasions where the Association extended the deadline to attract more candidates, no additional candidates came forward. (See *id.* at ¶ 4(e) and 4(g).) Defendant also adduced evidence that no members have come forward to notify the Board that they would have submitted a nomination for candidacy in 2023 had the notice period been the full 90 days, or had they received a reminder notice before the deadline, or had the candidates been listed on the agenda. (Armanini Decl. at ¶ 18(a)-(d).)

The basic problem here is that summary judgment is not a usable procedure for the dispositive issue at hand. The statutory violations are largely either already adjudicated or readily admitted. Hence, the key issue is the one on which Plaintiff seeks summary judgment, namely the viability of the

Association's affirmative defense that the violations did not affect the results of the 2023 election. Both sides seek to argue that issue by reference to what did or didn't happen in other elections in other years. The facts of those other elections are undisputed. But the problem is that getting from those facts, to a conclusion as to the results of the 2023 election, requires an inference by analogy. Plaintiff seeks to draw the inference that because there have sometimes been elections with more candidates than seats, that would (or might) have occurred in 2023 with proper notice and opportunity. The Association seeks to draw the inference that because in most elections there were no excesses of candidates, that would (or might have) occurred in 2023 even with proper notice and opportunity. It is a dicey enterprise to base summary judgment on inferences from known historical facts of different events, even on much clearer records than this one. And here, the historical facts could plausibly give rise to either of the two competing inferences, with the choice between them left up to the trier of fact at trial (though of course giving heed to the point that one side bears the burden of proof and the other side doesn't).

In light of the above, the Court concludes that there is a genuine dispute of material fact with respect to the Association's statutory defense under Civil Code § 5145.

Evidentiary Objections

The Court rules only on those objections material to the Court's ruling on the motion for summary judgment. (CCP § 437c(q).)

The court **overrules** all of Plaintiff's objections as raised in Plaintiff's "Evidentiary Objections to Defendant's Additional Material Facts." Plaintiff directs his objections to facts contained in the Defendant's Separate Statement. These facts are not evidence. California Rules of Court, rule 3.1354 requires a party to object to items of evidence. Any objections to evidence must comply with California Rules of Court, Rule 3.1354. Furthermore, California Rules of Court Rule 3.1354(b) dictates the format in which evidentiary objections must be submitted: "All written objections to evidence must be served and filed separately from the other papers in support of or in opposition to the motion. Objections on specific evidence may be referenced by the objection number in the right column of a separate statement in opposition or reply to a motion, but the objections must not be restated or reargued in the separate statement." Plaintiff's objections are procedurally defective.

Future Course of the Litigation

The Court takes the opportunity to comment on where this case may go from here. The challenged election occurred in 2023. The issue is not moot because the board elected then is still in office. The 2024 election did not occur for lack of a quorum; the Court does not see any indication from the parties why there was no intervening election in 2025. Presumably, however, an election is due to be held in 2026, more likely than not before any bench trial will occur in this case.

The Court does not know why, with little dispute as to the legal violations, no debate over how to conduct future elections, and no dispute as to historical facts, it has taken two and a half years for this case to get even to the point of an unsuccessful summary judgment motion. However – and recognizing that, despite Plaintiff being a board member, these parties may not be on very good speaking terms – the Court urges that they begin thinking about how and when to proceed with the next election rather than continuing to debate about the last one.

4. 9:00 AM CASE NUMBER: C23-02709
CASE NAME: MELISSA PALMER VS. DIGGER'S DINER CONCORD, INC.
*HEARING ON MOTION IN RE: QUASH SERVICE OF AMENDED SUMMONS AND SECOND AMENDED COMPLAINT
FILED BY: DIGGER'S DINER CONCORD, INC.
TENTATIVE RULING:

This motion to quash service is expressly unopposed, because it has been **mooted** by subsequent service. The attorneys in this case need to start behaving more professionally.

5. 9:00 AM CASE NUMBER: C24-03183
CASE NAME: NAVYA SHARMA VS. RAVINDER SHARMA
*HEARING ON MINOR'S COMPROMISE RE: DIVA SHARMA
FILED BY:
TENTATIVE RULING:

The proposed minor's compromise is **approved**.

6. 9:00 AM CASE NUMBER: C24-03183
CASE NAME: NAVYA SHARMA VS. RAVINDER SHARMA
*HEARING ON MINOR'S COMPROMISE RE: AYAAN SHARMA
FILED BY:
TENTATIVE RULING:

The proposed minor's compromise is **approved**.

8. 9:00 AM CASE NUMBER: C25-01059
CASE NAME: SHELLEY MYTHEN VS. CARY JARVIS
HEARING ON DEMURRER TO: RE 1ST AMENDED COMPLAINT
FILED BY: JARVIS, CARY
TENTATIVE RULING:

Defendants' demurrer to the First Amended Complaint is **sustained with leave to amend**, and defendants' motion to strike is **granted with leave to amend**.

Defendants shall prepare a proposed order and serve and file a notice of entry of order. Plaintiff shall have 30 days from notice of entry of order to file an amended complaint.

Summary of Allegations and Procedural History

Plaintiff Shelley Mythen filed her original complaint on April 15, 2025, against Ida Alfaro, Donna Willis, Cary Jarvis, Lesli Vandergroen, the Estate of Daisy JoAnn Jarvis, and Does 1 through 10, and a first amended complaint (FAC) on February 2, 2026.